

Vs. The Learned Addl. District
Judge, etc.

18.04.2019. Mr. Javid Iqbal Kahloon, Advocate for petitioner.

2. It is contended on behalf of the petitioner that no dowry articles were given to the respondent at the time of her marriage as the respondent was living with her maternal grandmother ('Nani') at that time and the said 'Nani' had no source of income. Moreover, the source of income of the respondent's father has not been disclosed and the receipts relied upon by the respondent are ante-dated and some of the items mentioned in the list have been recorded twice. Further argues that only some ornaments and gifts were given by the petitioner as 'bari', therefore, the decrees passed by the courts below are not based on true facts of the case and the same be set-aside.

4. It is an admitted fact that that marriage between the parties was solemnized on 11.01.2015 and 'talaq' was effected on 26.11.2016. The plaintiff claimed dowry articles as per list attached worth Rs.

6,71,300/-, which as per contention of the plaintiff, the petitioner/defendant has refused to return. Both the parties led their respective evidence. On conclusion of the trial, the learned trial court partially decreed the claim of the respondent for an amount of Rs. 300,000/-. Both the parties went in appeal. The learned appellate court maintained the findings of the learned trial court. The argument raised by the counsel for the petitioner is that the claim of the plaintiff with regard to recovery of dowry articles is groundless as father of the respondent is a poor man and there is no question of fetching dowry articles at the time of marriage and the list and receipts attached with the plaint are fabricated. It is noticed that in support of her claim, the respondent herself appeared as PW-1 and deposed in favour of her claim as set out in plaint and also produced Muzamil Hussain as PW-2, who remained consistent with regard to the claim of the respondent. She produced receipts of dowry articles as Exh.PA to Exh.PG. As far as financial status of the parents of the respondent is concerned, certified copy of register records of rights regarding the property of the respondent's parents as Exh.PH and Exh.PI was produced in evidence. The respondent also furnished in evidence the return ticket of his father as Mark-D, which shows that the respondent's father has gone to Dubai. The respondent is the only daughter of her parents and it is not appealable to the mind that no dowry articles would be given to the respondent at the time of her marriage. Living with her maternal grandmother at the time of marriage would not lead to presumption that dowry articles had not been given to her. It is experienced that marriages in our country are celebrated with customs and traditions. It is the custom of our society that parents give dowry articles to their

daughters according to their financial status. The courts below while relying upon the wear and tear factor, period of subsistence of marriage and financial position of the plaintiff side rightly decreed the claim of the plaintiff for an amount of Rs. 300,000/-. No exception can be taken to the same.

5. Learned counsel for the petitioner has failed to point out any misreading, non-reading or illegality in the impugned judgments. The assessment and appraisal of evidence is the function of the Family Court, which is vested with exclusive jurisdiction in this regard. This Court while exercising constitutional jurisdiction does not ordinarily reappraise the evidence produced before the courts below to substitute findings of facts recorded by the said courts, nor gives its opinion regarding quality or adequacy of the evidence unless any misreading, non-reading of record or any illegality is pointed out, which have not been established on the record, hence, there is no ground to set-aside the said findings of fact.

6. For what has been discussed above, this petition being devoid of any merit stands **dismissed**.

(Muzamil Akhtar Shabir)
Judge